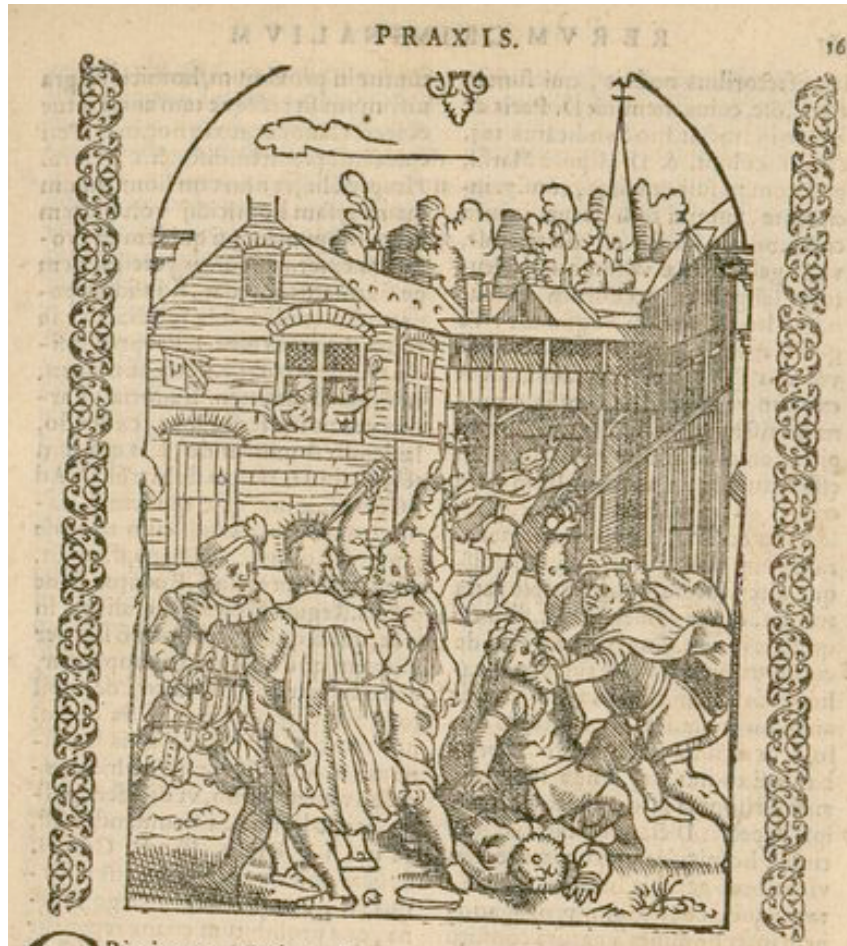


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Jodocus Damhouder, *Praxis Rerum Criminalium*, 1562, p. 167

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A Jewish Perspective on the Execution of "Jew Süß": 4 February 1738

Yair Mintzker, Princeton University

Source: The Story of the Passing of Joseph Süß, of Blessed Memory

Introduction

(From Yair Mintzker, "Ve-lagardom hayu chamishim ushtayim madregot," *Haaretz Tarbut veSifrut*, 8.3.13)

"The Story of the Passing of Joseph Süß, of Blessed Memory," which appears here in full in English for the first time, is an extraordinary document. It concerns the arrest of Joseph Süßkind Oppenheimer in March 1737, his 11-month incarceration, his encounter with two Jews in prison and his execution the following day.

Oppenheimer, who already during his imprisonment began to be known derisively as "Jew Süß," was born in Heidelberg to a middle-class Jewish family, probably in 1698. Starting in the third decade of the 18th century, Oppenheimer served as a court Jew to several German princes. In 1732 he met and befriended Carl Alexander, the future duke of Württemberg, a state in southwest Germany. When Carl Alexander ascended the throne the following year, Oppenheimer transferred the lion's share of his activities to Stuttgart, the capital of Württemberg, where he received from the Catholic duke privileges and protection during the latter's political struggle against the local Protestant population.

The duke's protection was to Oppenheimer's detriment. On March 12, 1737, Carl Alexander died of a sudden stroke, and that very evening Oppenheimer was placed under arrest. He spent the following 11 months in prison, first at the Hohenneuffen fortress south of Stuttgart, then at the Hohenasperg fortress north of the city and finally in the Herrenhaus in Stuttgart itself. Convicted of unspecified "misdeeds," Oppenheimer was executed by hanging outside Stuttgart on February 4, 1738, before an audience of nearly 20,000 spectators. His body was left on display in a gibbet north of Stuttgart for six more years.

The death of “Jew Süß” quickly became the focus of hundreds of stories, poems and pamphlets. “The Story of the Passing of Joseph Süß, of Blessed Memory” stands apart from them all in that it is the only document we know of that was written by Jews, almost certainly on the instructions of Oppenheimer himself, on the eve of his execution. We thus have before us for the first time the story of Oppenheimer’s death as he himself would have wished to tell it, in utter contrast to the numerous contemporary sources that described the bitter end of “the sweet Jew” (the meaning of the name “Jew Süß” in German) from a very hostile point of view.

Although he was executed nearly 300 years ago, Oppenheimer’s trial never quite ended. Even as the legal proceedings were unfolding, it became clear that what was placed in the scales of justice were not his supposed crimes (no formal indictment was ever submitted against Oppenheimer, and the vague verdict failed to provide any details whatsoever about the reasons for his death sentence). The significance of the trial, and the reasons for the public tumult it provoked in German society, cannot be found in the dry language of legal treatises but in the role the story played as a parable about the rise and fall of prominent Jews in pre-modern and modern times.

Oppenheimer’s meteoric success during the years he spent in Stuttgart and his no less spectacular fall in the aftermath of the death of his patron the duke have been viewed by many as a parable about the story of German Jewry both in Oppenheimer’s time and even more forcefully in the 19th and 20th centuries. At every point in time when the status, culture, past and future of Germany’s Jews were hanging in the balance, the story of this man moved to center stage, where it was investigated, novelized, set to music and even sung in a variety of forms. Early in the 19th century, it was the important novella by Wilhelm Hauff about Jew Süß. In the 1920s, the first comprehensive biography of Oppenheimer, by Selma Stern, was published, and in 1925, the significant historical novel by Lion Feuchtwanger. During World War II, there was Veit Harlan’s notorious anti-Semitic film.

If it was in fact Oppenheimer who wished to have the story of his death told as it appears in the document before us, then he himself was already aware of the symbolic and historical significance of his trial, and was consciously attempting to influence the way in which it would be remembered. The significance of the document before us does not end, therefore, with the details of the arrest, incarceration and execution, many of which are

available to us from other sources as well. The principal significance of the document, rather, lies in what Oppenheimer himself was trying to achieve through it.

Who was the author of “The Story of the Passing of Joseph Süß, of Blessed Memory,” and when and where was it composed? Several contemporary German sources refer to the existence of a single-leaf pamphlet, written in Hebrew letters, copies of which arrived in Württemberg no later than March 1738. These sources even identified the place of printing as the city of Fürth (near Nuremberg). In three different instances, local scholars even decided to translate the text into German in order to show how the Jews were bestowing praise on the life and achievements of the “criminal” Oppenheimer, to the extent that they even termed him a saint.

For many years, these translations were the sole evidence of the existence of a “Jewish narrative” of Oppenheimer’s life and death, but the malicious language employed by their authors against the Jews, and the fact that from the time of their publication and for the nearly three centuries that ensued the original remained undiscovered, placed a large question mark over the historical veracity of the document.

We are indebted to Hellmut Haasis for the reappearance of the original. Haasis, a German journalist, writer and historian, devoted many years to writing a comprehensive biography of Oppenheimer. Several years ago, a private collector revealed the original document to Haasis, who rescued it and sent a copy of it to this author (Haasis does not read Hebrew). A comparison between the original and the 18th-century translations of it prove beyond doubt that this is the very same Jewish pamphlet, copies of which were seen in several locations in southwest Germany and translated into German in the weeks that followed Oppenheimer’s execution.

Finally, the question of authorship. The author does not identify himself other than to say that he was one of the two Jews who visited Oppenheimer in the Herrenhaus in Stuttgart on the eve of the execution (the other was Mordechai Schloss). The trial documents and contemporary accounts confirm that such an encounter took place, and make it even possible to identify the author of “Story of the Passing” as one Salomon (Zalman) Schechter, a ritual slaughterer by profession. Schechter wrote the story in Judeo-German. If, as the author claims, Oppenheimer indeed instructed Schloss and Schechter “to write about how he died to all of the Jewish

Diaspora,” then the intended audience of “The Story of the Passing of Joseph Süss, of Blessed Memory” includes you, the readers of these lines. Its publication in Haaretz qualifies as belated adherence to the request that Joseph Süss Oppenheimer himself made in his last will and testament, 275 years ago.

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Yair Mintzker, Princeton University

Source: The Story of the Passing of Joseph Süß, of Blessed Memory

English Text: The Story of the Passing of Joseph Süß of Blessed Memory

Be it known that there was a man in Stuttgart in the state of Württemberg, who became ever greater in the stubbornness of his heart and his pride, in his wealth and his wisdom, and he was called Joseph Süß. This Süß became a high counselor to Duke Carl Alexander, and rose in importance with each passing day. One day, his master the duke passed away. That very night, Süß was arrested by dint of royal edict, was chained by ropes of iron and was placed for a duration of eleven months in Asperg, the great fortress, where he was surrounded by guards who were men of war. The life story of Süß is known far and wide, as are his actions against the almighty God and against human beings. But because the time of his judgment had arrived and the time of his departure from this world, we must first of all give public announcement to the whole world of his name, and ask that his name be read out in every Jewish community: The martyr Joseph Süß ben Issachar Süßkind Oppenheim of blessed memory, whose soul departed in sanctification of the Lord's name, may his soul rest in paradise with the other righteous individuals and repentants forever and ever, amen and amen. And because he passed away in possession of a full belief in God, and wholeheartedly regretted the transgressions he had committed, neither we nor any members of the Jewish faith can ponder upon it until the arrival of the Messiah.

Firstly, while Joseph Süß was imprisoned in the Asperg fortress, from Rosh Hashanah 1737 until the day of the trial, he subsisted solely on thin bread and water.

Secondly, he fasted each and every day, and only when evening fell did he eat something, and each week he fasted two or three entire days. Last Passover, he subsisted solely on bread, water and turnips. The reason for all

this was revealed by the wholly righteous person prior to his death, and anyone of intelligence can understand his reasoning. And the way in which he acted within the prison is truly incredible. Finally, on Wednesday the ninth of Shevat 5498 (January 1737), Süß was transferred to the city of Stuttgart under the guard of 200 men of war with drawn sabers and loaded muskets, and a large assembly of people all around, beyond enumeration, as the sand which is upon the sea shore. Süß was placed in Stuttgart in the Herrenhaus in the market square, in a single room, where it is customary to imprison the criminals, with a guard of 20 men and several officers. This transfer alone, until he arrived at this room by way of the city, was tantamount to a first death. And on that day, he did not ask or demand any food or drink, except for a kettle of tea.

On Friday, the eve of the holy Sabbath on which the Torah portion “Beshalach” is read, he was informed of the death sentence against him. Immediately, several priests entered his room, who attempted to effect an upheaval of his faith. And the sainted Joseph Süß of blessed memory immediately fell to his knees and with his arms raised high, said in these words, and with great import: Gentlemen, what you are perhaps thinking of asking me? I request that you spare me these words; withdraw, and go back to your homes. Because I am left without much time to become reconciled with my Lord, blessed be he and blessed be his name. Do not disturb my rest any longer. And that is what happened. Last Sunday, Joseph Süß asked for and received a Jewish prayer book and other books. These were the prayer book of Rabbi Michels, with prayers in great benevolence to the Blessed Be He, and a midnight *tikkun*, which contained an extensive confessional prayer. Following the prayer, Joseph Süß asked to see Rabbi Mordechai Schloss and other Israelites. This request of his was also granted to him by the authorities. And so, the aforementioned Rabbi Mordechai came to him, and as soon as he saw him, Joseph Süß fell upon the man’s neck, and cried and shouted a great deal, and immediately told this Rabbi Mordechai that the time was too short to engage in matters of this world. Rather, he had to think of the Blessed Be He and regret the transgressions he had committed. Afterward, the two men spoke alone and I am forbidden from saying what they spoke. Verily, I do not have enough quills and ink to describe his passing from this world. What’s more, it is difficult for me due to my great sorrow. Nevertheless, it is true that the world has not seen such a saintly man as Süß for a very long time.

Witnesses to his last will and testament were the secretary and other persons,

as well as myself and Rabbi Mordechai Schloss and other lower-ranking officers, and all were present in the room and signed their names, and this will be to the greater honor of Süß. And the reason for this is that of all of the property of this saintly man, only the amount of 3,000 Reichsthalers remained, and of that sum he gave something to the priests, but the majority he gave for the benefit of Jewish communities for the sake of study of the Torah and so that they would light an eternal flame for him in his memory for a full year's time. In short, I cannot describe everything, but neither did he forget his mother and his brother and brother-in-law. Süß remained in his full wits, and asked Rabbi Mordechai Schloss that following his death he write to all of the holy communities, asking them not to call his holy spirit reproachfully or refer to it in an evil connotation, God forbid, but to publicly announce that he died in sanctity of God's name, may it be blessed, and that he was always fearful of additional deaths of members of the Jewish people, God forbid, but through God's help, no such thing occurred. In any event, after this his soul departed, as he was calling 'Hear O Israel, the Lord is God, the Lord is one.' And 52 steps led to the gallows themselves, and as he climbed each one of them he said, the Lord is God. In conclusion, who would be able to recount his praises? ... And prior to his death the saintly righteous man Joseph Süß of blessed memory instructed, in a true and full heart, to write about how he died to all of the Jewish Diaspora and to caution against arrogance, and that the Blessed be he will with God's help keep all of Israel alive until the arrival of the redeemer, amen.

(Translated by Marty Friedlander, *Haaretz*; edited by Yair Mintzker)

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A Jewish Perspective on the Execution of "Jew Süß": 4 February 1738

Yair Mintzker, Princeton University

(From Yair Mintzker, "Ve-lagardom hayu chamishim ushtayim madreget," *Haaretz Tarbut veSifrut*, 8.3.13)

רעלאציאן על פטירת יוסף זיס זצ"ל

דע שהיה איש א' במקום שטוקרט במדינות ווירטנבורג. שהלך וגדול מאוד ומאוד בשירות לבו ובגאותו בעשירותו ובחכמתו ונקרא יוסף זיס והיה תקיף גדול אצל הדוכס הערציג קארל אלכסנדר ונתגבר גדולתו ותקיפתו מדי יום ויום אותו היום שנפטר האדון הערציג הנ"ל מיד באותו הלילה האט מן על פי השררה האיש זיס הנ"ל תופס בחבלי ברזל גיוועזן בתוך התפיסה אחד עשר חדשים במבצר הגדול אסבערג עם שומרים בעלי מלחמות אין פארווהרונג גנומן נון איזט בכל העולם ווישינליך גוועזן דען לעבינס לויף אונד אויף פיהרונג נגד הש"י ב"ה ונגד בני אדם וכאשר הגיע זמן ויומא דדינא מעולם הזה מוז מן קודם כל דינן עולם מודיע זיין ושמו מפורסם מאכין ויהיה נקרא שמו בכל עדת בני ישראל האיש הקדוש יוסף זיס בהר"ר יששכר זיסקינד אפנהיים זצ"ל ויצא נשמתו על קדושת שמו ב"ה באחד וכן ינוח נשמתו בגן עדן עם שאר צדיקים ובעלי תשובות לעו"ה אמן ואמן. ובזכות שנפטר באמונה שלמה ונתחרט בלב תמים על עוונותיו שעשה אין עלינו וכל שאר בני ישראל להרהר אחריו עד ביאת משיחנו.

בראשון בחוזה אשבערג זינד ר"ה [ראש השנה] תצ"ח לפ"ק [לפרט קטן] עד יומא דדינא האט ער ביים לחם צר ומים לחץ אוהני אנדרי לעבינס מיטל גלבט.

בשנית מידי יום ויום תענית גיהאט עד לעת ערב אן גביסן אויך כל שבועה עד הנה צווילונג אונ' טרייצונג גפאשט. בפסח העבר האט דר זעלביגי געזין ברוט אונ' וואסר אונ' רוכי רובין אונ' האט ניקסן

אנדרשט עטין וואלין. אונ' דען טעם האט דער צדיק גמור קודם פטירת אגלה דעתו גיוועזין וועלכיש לו יעדר בעל שכל קרוב לדעתו איזט. אונד האט זיך מתנהג בתוך התפיסה גוועזן דז ממש אהן גלויב באר זיין מאג. ביום ד' ט' שבט איזט ער אריין במקום שטוקרט אונטר איינר אקארט פון צוויא הונדרט בעלי מלחמות מיט אויף גישטעקטי פאנגינעטן מיט אויף גיצוגיני האנין נעבסט איין און דר גלייכן צו לויף עם רב שאין מספר כחול הים גליפרט ווארדן. אונד אין הערן הויז השוק בחדר אחד וואו מן אלי מלאיפיקאנדן לאשירט אונטר איינר שמירה מן כ' אנשים עם איזה ראשים פענדריך אליין דז איין פיהרן ביז ער צום חדר גיקומן איזט. זו איזט ג"כ לו איין שטיק מיתה צו פר גלייכן גוועזן. וביום ההוא האט ער קיין אכילה ושתיה פר לנגט אודר ביגערט אויזר איין טע.

ביום ו' עש"ק פרשת בשלח העבר האט מן אים דיא מיתה אן גיקינדיגט אונד זיין לעבין אבגיזאגט. אלזו זיינן גלייך (כומרים) אצלו גיקומן בחדר שלו אונד וואלין אים מהפך באמונתו זיין דרויף הקדוש זצ"ל תמיד פר דיא (כמרים) צו פוס גיפאלין מיט אויף ארהבונג ידים שלו ואמר בזה הלשון בחשיבת גדול איר הערין וואס איר א[י]ך פילייכט איין בילד פון מיר צו ערלנגן, זוא ביטה, פר שבארט אייער ריד זונדרן פיל מער וויל גבעטן האבן דז איר אייך צו רוק בגיבט אין עיירי הייזר. און וויל איך קיין איבריגי צייט פיל הבי מיט מיין לעבנדיגן גאט ב"ה וב"ש צו פרזהן דז איר מיך אין מיינר אנדכט ניט ווייטר פרשטערן מעכט דאז איזט גישעהן ביום א' העבר האט ער פרלנגט תפילה ושאר ספרים וועלכי מן איהם גשיקט האט, נעמליך ר' מיכלס תפילה אונד תיקון חצות לילה וואו ער ווידוי גדול צו גיבראכט האט אונד זיין תפילה נגד הש"י ב"ה בחסד גדול צו גיבראכט. לאחר התפילה האט ער ביגערט הקצין ר' מרדכי שלאס ושאר בר ישראלים צו אים צו קומן. וואלכיש אים משררה יר"ה צו גיזאגט ווארדן איזט. זוא איזט הקצין ר' מרדכי הנ"ל צו אים גיגאנגין. זא באלש ער אין גיזהען האט איזט ער אים אום זיין האלז גיפאלין. אונד גיווינד אונד גישריאן גאר זער. אונ' זיך תיכף ומיד עם ר' מרדכי הנ"ל איין גילאזן דז הזמן ניט צו לאזט מיט דברים בעלמא זיין זמן צו פרברענגן. זונדרין מכטי זיך גיפאלין צו לאזן אויף הש"י ב"ה צו דענקין. אונד מתחרט אויף זיין עוונות צו זיין. אונד וואז דיא בייטי נון וויטר ביחידות גירעט האבן איזט בסתר. על כל פנים וואלט מיר ווינשן חלקי עם עם ר"מ [רבי מרדכי] צו האבן. וואז דיא ביידי אין דיאזעלביגי צייט גירעט האבן ווער הגורם ממש במיתתו איזט מיר אסור לדבר. רק וויא זיך לייכטליך פרעזומירן קענט ווערטי, ג"כ כמו אני זעלבשטן וויסן קאנן רק דעם גרונד איזט נעלם ממנו איך העט בהן צדק ניט דינט אונ' פעדיר גינג זיין אבשיט מעולם

הזה צו בשרייבן. ומה גם איזט מיר נגד הלב משום צער גדול עכ"פ איז דאז דער גרונד אמת דאס אין
לנגי צייט קיין זעלכיר קדוש בעולם איזט גיוועזן.

זיין לעצטי צוואה איזט פון דעם זעקרעטאריס אונד אנדרי בייא שטיהנדן לייטן אלז איך אונ' הקצין ר'
מרדכי שלאס אונ' אנדרי ראשים ריקם וכולם דא בייא אין זיין חדר אפנטליך זיינן אונטרשריבן אונ'
ווירט זאלכס איהם לכבוד גיהאלטן דער גרונד בשטיט דרינן דז זיך דער איש קדוש אויז גיהאלטן האט
פון אלים דעם זייניגן ג' אלפים ר"ט זאלכיס האט ער אן גיווענד עטוואס אן (כומרים) מעהרן טיילס אן
קהילות רבנים לערנן צו לאזן נר תמיד על שנה תמימה לו ברענן. אין סומא איך בין ניט אין שטאנד
הכל צו שרייבן דיא מוטר אונ' ברודר אונ' שוואגר האט ער בידאכט ניקסן פרגעסין. אונ' בייא זיינר
חכמה מלאה גביליבן אוהן פר ענדערליך אך גיבעטן כהר"ר מרדכי שלאס לאחר מיתתו צו שרייבן
בכל קהילות קדושות זיינר נשמה טהורה ניקסן לגנאי נאך צו רידן, אודר בדבר רשע ח"ו זונדרן דען
עולם וויסן צו לאזן דז ער על קדושות שמו ב"ה גישטארבן איזט. אונ' האט זיך אליז בפעריכט פר
פערנר הריגות ב"י ח"ו וועלכט אבר בעז"ה וואול אבגילאפן איזט. אונ' אן שטאט דז מן גמיינט האט
ח"ו רשעות דריבר צו לייטן אונ' קונדרער וואז זאלכר פר איין שלוה צו וועגן גיבראכט האט איזט
קיין שיעור וסוף קונפקטיג לטובה מעהרריט. עכ"פ אין דיבר שמע ישראל ה' אלוהינו ה' אחר יצאה
נשמתו. אונ' צו דיא תלי' אנויף האט ער גיהאבט נ"ב שטאבלין אונ' אויף יעדער שטאבל האט ער גיזאגט
ה' הוא האלהים אין סומא מי יוכל לספר שבחו כהיום זאל האלווקט נאך איין גליפרט
ווערדן אונ' מן זאגט ווערט שאריף מיט אים פר פארין ווערדן אונ' דער צדיק
וקדוש יוסף זיס זצ"ל האט ווירקליך ביפולין קודם מותו זיין מיתה בכל תפוצות ישראל צו בשרייבן
דער מיט אלז מן זאל קיין גרוסי האפרט טרייבן אונ' הש"י ב"ה זאל וויטר כל
ישראל לאזן לעבן בלייבן עד ביאת הגואל אמן.